

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

Case No: 2024-CV-005678 | Filed: November 1, 2024

STATEMENT OF UNDISPUTED FACTS

1. Jane Smith's employment agreement (Ex. A) contains a valid at-will provision notwithstanding the 90-day notice clause, which is aspirational under New York law.
2. Performance improvement plans issued September 1 and October 15, 2023 (Exs. B, C) establish documented cause for termination independent of the Audit Committee report.
3. Plaintiff's EEOC charge (Ex. D) was filed 64 days after the alleged retaliatory act, exceeding the 60-day administrative exhaustion period under 42 U.S.C. § 2000e-5.
4. As of December 10, 2023, only 6,250 options had vested. The remaining 3,750 options were unvested and subject to forfeiture upon termination per Section 3 of the Agreement.

LEGAL STANDARD

Summary judgment is appropriate when there is no genuine dispute as to any material fact and the moving party is entitled to judgment as a matter of law. Fed. R. Civ. P. 56(a).

RELIEF REQUESTED

Defendants respectfully request entry of summary judgment dismissing all claims with prejudice and awarding attorneys' fees under the fee-shifting provision of the Employment Agreement.

Dated: November 1, 2024 | Skadden Arps LLP